

File No.: EXP202300523

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 27/11/2022, a written complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant), regarding B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for a possible breach of the provisions of personal data protection regulations.

The reasons for the complaint are as follows:

“In 2017, I reported this person for a violent robbery against me. To this day, they are disseminating my personal data such as my ID number, phone number, and address on Facebook with a photo of me, defaming me as committing a crime of racism. The reported person is the one who, through their Facebook profile, uploads my medical reports from the violent robbery they committed against me, where in those documents that they upload to the social network, all my personal data, work address, ID, phone number, etc., appear.”

Along with the complaint, a screenshot of a post dated 18/11/2022 at 11:35 hours from the Facebook profile B.B.B. is provided, which shows a photograph of a woman, who would be the complainant, and 4 images: 3 related to the medical reports and 1 to the processing of a judicial procedure.

SECOND: On 17/01/2023, this Agency accessed the Facebook profile of the respondent, B.B.B., and verified that the post subject to the complaint remained active.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 18/01/2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 01/02/2023 as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

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FOURTH: On 27/02/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FIFTH: On 22/11/2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringements of Articles 9 and 6.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.a) of the GDPR. Additionally, as a provisional measure, the respondent was ordered to remove the post subject to the complaint that appears on the Facebook profile B.B.B.; from the notification of the initiation of the sanctioning procedure until its final resolution.

This initiation agreement was notified in accordance with the rules established in the LPACAP through an announcement published in the Official State Gazette (hereinafter, B.O.E) on 11/12/2023.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

SEVENTH: On 20/02/2024, the instructor of the procedure decided to open a period for evidence,

considering the complaint filed by the complainant and its documentation, as well as the documents obtained and generated during the admission phase of the complaint. Additionally, it was agreed to verify whether the post subject to the complaint remained active on the Facebook profile B.B.B., having accessed it on 20/02/2024.

EIGHTH: On 24/04/2024, the instructing body of the procedure issued a resolution proposal in which it proposed to impose two fines of €5,000 each on the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the infringements of Articles 9 and 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

Additionally, the provisional measure to remove the post subject to the complaint was confirmed. This resolution proposal, which was notified to the respondent in accordance with the rules established in the LPACAP, was received on 13/05/2024, as evidenced by the acknowledgment of receipt in the file.

NINTH: On 24/05/2024, a written response was received in this Agency, in due time and form, from the respondent, in which they presented allegations against the resolution proposal. In these allegations, in summary, they expressed their "indignation at the partiality before a clear case of racism that makes your Agency very Spanish and racist due to its complicity, having I presented on social networks the evidence supporting my complaint of racism against A.A.A." Along with the written response, among other documents, a copy of the documents subject to the complaint was provided.

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From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On 11/18/2022 at 11:35 hours, the respondent published the following message on their Facebook profile (B.B.B.):

"A.A.A.
(...)"

Alongside the publication, there are 5 images:

- Photograph of a woman's face that would correspond to the claimant.
- Medical reports of the claimant. The following data is legible, among others:
 - o Name and surname: A.A.A.
 - o Patient's address: ***ADDRESS.1
 - o NIF: ***NIF.2
 - o Emergency Discharge Report, dated ***DATE.1. Among its content is the "Reason for consultation": (...).
- Health Declaration, dated ***DATE.2, issued by the forensic doctor stating: "(...)"
- Written document addressed to ***COURT.1 by the respondent. The document contains personal data of the claimant (name and surname, among others).

SECOND: On 01/17/2023 and 02/20/2024, this Agency accessed the Facebook profile of the respondent (B.B.B.), proving that the publication subject to the complaint was not removed.

THIRD: Documents No. 3, 4, 5, and 6 submitted by the respondent in their written allegations to the proposed resolution are identical to those published on their Facebook social media profile (B.B.B.).

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;"

"15) 'data concerning health': personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about his or her health status."

In the present case, according to Article 4.1 of the GDPR, the physical image of a person is personal data, so its inclusion in publications that identify or make a person identifiable constitutes processing of personal data. Furthermore, not only is the face of the claimant made public, but also identifying data and health data of the claimant, as their medical reports are disseminated.

III

Claims made

The respondent claims the necessity to publish on their social media the documents containing personal data of the claimant in order to justify their complaint of racism against the claimant, considering this Agency to be "complicit" in the racist behavior of the claimant.

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In this regard, this Agency wishes to point out that, at no time has the principle of impartiality established in our legal system been violated in the present sanctioning procedure; since the sanctioning power exercised has been limited to objectively analyzing the facts reported by the complaining party, as well as the evidence provided for that purpose.

Thus, as indicated in the Established Facts, it has been confirmed that the responding party published—and continues to publish—on its Facebook social media profile (B.B.B.) documents containing identifying personal data and health information of the complaining party without respecting the provisions established in Articles 9 and 6.1 of the GDPR. And not only that, but also the personal data of the image.

For all the above, this Agency dismisses this allegation.

IV

Processing of special categories of personal data

Article 9 of the GDPR states the following:

"1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply when one of the following circumstances applies:

a) the data subject has given explicit consent to the processing of such personal data for one or more

specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;

b) the processing is necessary for compliance with a legal obligation to which the data controller is subject or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

c) the processing is necessary for the protection of vital interests of the data subject or of another natural person, in the event that the data subject is physically or legally incapable of giving consent;

d) the processing is carried out in the course of legitimate activities with appropriate safeguards by a foundation, association, or any other not-for-profit body with a political, philosophical, religious, or trade union aim, provided that the processing relates solely to the members or former members of the body or to persons who have regular contact with it in connection with its purposes and that the personal data are not disclosed outside that body without the consent of the data subjects;

e) the processing relates to personal data which are manifestly made public by the data subject;

f) the processing is necessary for the establishment, exercise, or defense of legal claims or whenever courts are acting in their judicial capacity;

g) the processing is necessary for reasons of substantial public interest, on the basis of Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for suitable and specific measures to safeguard the fundamental rights and interests of the data subject;

h) the processing is necessary for purposes of preventive or occupational medicine, for the assessment of the working capacity of the employee, for medical diagnosis, for the provision of health or social care or treatment, or for the management of health or social care systems and services, on the basis of Union or Member State law or pursuant to a contract with a health professional and subject to the conditions and safeguards referred to in paragraph 3;

i) the processing is necessary for reasons of public interest in the area of public health, such as protecting against serious cross-border threats to health, or ensuring high standards of quality and safety of health care and of medicinal products or medical devices, on the basis of Union or Member State law which provides for suitable and specific measures to safeguard the rights and freedoms of the data subject, in particular the secrecy of professional communications;

j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes or for statistical purposes, in accordance with Article 89(1), on the basis of Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for suitable and specific measures to safeguard the fundamental rights and interests of the data subject.

3. Personal data referred to in paragraph 1 may be processed for the purposes referred to in paragraph 2, letter h), when the processing is carried out by a professional subject to the obligation of professional secrecy, or under his responsibility, in accordance with Union or Member State law or with the rules...

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established by the competent national authorities, or by any other person also subject to the obligation of confidentiality in accordance with Union Law or the laws of the Member States or the rules established by the competent national authorities.

4. The Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or health-related data.”

In the present case, it is noted that the respondent, on 18/11/2022 at 11:35 hours, published on their Facebook profile (B.B.B.) the following message: “A.A.A.. (...)”. As indicated in the first section of Established Facts, alongside the publication are 5 images in which the face of the person who would be the claimant is visible, as well as other identifying personal data (name, surname, address, among others) and related to their health.

It is evident that the respondent is processing the health data of the claimant from the moment they publish the medical reports of the claimant on their Facebook profile, B.B.B., without censorship. The images clearly show the observations of the healthcare personnel who attended to the claimant. Health-related data, by their nature, belong to special categories of data, regulated in Article 9 of the GDPR, which establishes a general prohibition on their processing. Thus, their processing requires the occurrence of one of the circumstances listed in paragraph 2 of the aforementioned article that lifts the general prohibition on processing.

However, it is not recorded in the proceedings, nor has it been justified by the respondent, that any of the circumstances that would lift the prohibition on processing such personal data are present. Therefore, in accordance with the evidence available at this stage of the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the respondent, for violation of Article 9 of the GDPR.

V

Classification and qualification of the infringement of Article 9 of the GDPR

The aforementioned infringement of Article 9 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent pursuant to Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period, Article 72.1 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law being present; (...)"

VI

Sanction for the infringement of Article 9 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 9 of the GDPR allows for the imposition of an administrative fine of €5,000 (five thousand euros).

VII

Legality of the processing of personal data

The principles governing processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) Processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);

(...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The situations that allow for the lawful processing of personal data are listed in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

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- a) the data subject has given their consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

In this regard, Recital 40 of the GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under the law of the Union or of the Member States to which this Regulation applies, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or for the purpose of taking steps at the request of the data subject prior to entering into a contract."

The processing of special categories of personal data also requires the concurrence of one of the legitimizing grounds of Article 6 of the GDPR. In this case, the circumstances that may arise for the lifting of the prohibitions on the processing of health data alone do not constitute grounds for legitimization for the processing of such data.

On the other hand, the publication appearing on the Facebook profile of the respondent (B.B.B.) not only reveals data related to the health of the claimant but also their image and identifying personal data (name, surname, mobile number, and address, among others).

Upon examining the documentation in the administrative file, it is evident that the processing carried out by the respondent concerning the personal data of the claimant has been done without a legitimizing cause as contemplated in the transcribed provision.

Consequently, in accordance with the evidence available at this stage of the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to the respondent for violation of Article 6.1 of the GDPR.

VIII

Classification and qualification of the infringement of Article 6.1 of the GDPR

The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period, Article 72.1 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year limitation period: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...)

- b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679; (...)"

IX

Sanction for the infringement of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating circumstances:

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- The intent or negligence in the infringement, as the conduct of the infringer reflects a clear intention to denigrate the claiming party, since they disclose the image and personal data of an identifying and health-related nature through social networks, whose dissemination is immediate (art. 83.2.b) GDPR),
- The categories of personal data affected by the infringement, as data related to the health of the claiming party has been exposed (article 83.2.g) of the GDPR).

The balance of the circumstances considered allows for the imposition of an administrative fine of €5,000 (five thousand euros) for the infringement of article 6.1 of the GDPR.

X

Adoption of measures

The infringements in this matter may lead to the imposition on the responsible party of the obligation to adopt appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in article 83.2 of the GDPR.

In such a case, this Agency may require the responsible entity to adjust its actions to the personal data protection regulations within the timeframe determined, with the scope expressed in the Legal Grounds of this agreement.

In light of the circumstances analyzed in this resolution of the sanctioning procedure, it is understood that the party being claimed is carrying out personal data processing that constitutes a very serious and irreparable detriment to the rights of the claiming party; since it affects not only their image but also identifying data (name, surname, ID number, address, among others) and other health-related personal data (special category of personal data).

It should be noted that in the agreement to initiate the present sanctioning procedure, it was agreed to impose as a provisional measure, subsequently confirmed in the resolution proposal, the removal of the publication subject to the claim from the Facebook social media profile of the party being claimed (B.B.B.).

Consequently, in order to safeguard and guarantee the rights and freedoms of the claiming party, it is agreed to elevate the provisional measure imposed to a definitive one.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for:

- Article 9 of the GDPR, classified under Article 83.5.a) of the GDPR, an administrative fine of €5,000

(five thousand euros).

- Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, an administrative fine of €5,000 (five thousand euros).

SECOND: To confirm and elevate to definitive the following provisional measure imposed on B.B.B., with NIF ***NIF.1, whose compliance must be evidenced the day after the notification of this sanctioning procedure resolution:

- The removal of the publication subject to the complaint from the profile of the social network Facebook of the party complained against (B.B.B.).

THIRD: TO NOTIFY this resolution to B.B.B.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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